

26STCV00679 26STCV00679

County: los-angeles

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Case Number: 26STCV00679 Hearing Date: July 10, 2026 Dept: 406

TUYET PHAM,

Plaintiff,

v.

CONTINUEM, et al.,

Defendants.

Case No.: 26STCV00679

Hearing Date: July 10, 2026

[TENTATIVE]

order RE:

defendants' motions to compel further
responses (CRS# 9641, 7450, 4522, 7161, 8880)

BACKGROUND

On January 8, 2026, Plaintiff Tuyet Pham filed this action against Defendants Continuum; Continuum Physicians Group Corporation, Inc.; Continuum Care Institute, Inc.; Freddy Sotelo, MD; and Bobby Massoudian, MD. The complaint alleges retaliation in violation of the Labor Code and wrongful termination in violation of public policy. Plaintiff alleges that he was fired after filing a class action wage lawsuit against Defendants.

On June 15, 2026, Plaintiff filed the instant five motions to compel further responses. Plaintiff filed an omnibus opposition on June 26, 2026. Defendants filed replies on July 2, 2026.

The motion CRS# 8880 (Requests for Production) is advanced and heard on this date.

LEGAL STANDARD

Upon receiving responses to its discovery requests, the propounding party may move for an order compelling further responses if the responses are incomplete or evasive, or objections are without merit or too general. (Code Civ. Proc., §§ 2030.300(a), 2031.310(a), 2033.290(a).)

DISCUSSION

I.

Special Interrogatories (CRS# 4522)

A party may not propound more than 35 special interrogatories unless the quantity is justified by the needs of the case. (Code Civ. Proc., §§ 2030.030-2030.050.) A court may restrict discovery that is unreasonably cumulative or duplicative, or that is unduly burdensome or expensive in relation to the needs of the case. (Id., § 2019.030(a).)

Here, the Court finds that 238 SROGs are excessive and overly burdensome in relation to the issues in litigation. Defendants have not demonstrated the need for additional SROGs. While Defendants are entitled to find evidence pertaining to Plaintiff's contentions, the complaint is only 46 paragraphs long and primarily alleges that Plaintiff was terminated as retaliation for filing a class action lawsuit. Plaintiff also alleges that Defendants fabricated patient complaints as a pretext. This is a relatively straightforward theory which does not warrant 238 SROGs.

Therefore, Plaintiff shall respond to the first 35 SROGs.

II.

Form Interrogatories (CRS# 9641, 7450)

A party may propound “[a]ny additional number of official form interrogatories . . . that are relevant to the subject matter of the pending action.” (Code Civ. Proc., § 2030.030(a)(2).) A party “is entitled to demand answers to its interrogatories, as a matter of right . . . [and] the burden of justifying any objection and failure to respond remains at all times with the party resisting an interrogatory.” (Williams v. Sup. Ct. (2017) 3 Cal.5th 531, 541.)

Here, Plaintiff has failed to justify his refusal to respond to the FROGs. FROGs are standardized interrogatories drafted by the Judicial Council, and Plaintiff does not identify any FROGs as improper or irrelevant.

Therefore, Plaintiff shall respond to the FROGs.

III.

Requests for Production (CRS# 8880)

The party seeking production of documents bears the initial burden of showing good cause through a fact-specific showing of relevance. (Kirkland v. Superior Court (2002) 95 Cal.App.4th 92, 98.) Once this showing is made, the burden shifts to the responding party to justify any objections. (Ibid.)

Defendants fail to establish good cause for the information sought in the RFPs. Defendants' separate statement only argues that Plaintiff's objections are improper. But Defendants bear the initial burden of demonstrating good cause before the burden shifts to Plaintiff to justify his objections. Some of the requests are also facially improper. For example, RFP No. 9 seeks “ALL non-privileged COMMUNICATIONS between YOU and any attorney regarding the CLASS ACTION.” Communications between Plaintiff and his attorney regarding the class action would necessarily be privileged.

Therefore, the motion is denied as to RFPs.

IV.

Requests for Admission (CRS# 7161)

The RFAs are excessive and unduly burdensome in that they seek to force Plaintiff to make conclusions and evidentiary admissions before discovery has been completed. For example, over a dozen RFAs ask Plaintiff to admit that "YOU have no evidence of" various contentions made in the complaint, or some variation thereof. Therefore, the RFAs are disproportionate to the needs of the case.

Therefore, the motion is denied as to RFAs.

CONCLUSION

Defendants' motions to compel further responses are GRANTED as to the Form Interrogatories and the first 35 Special Interrogatories and DENIED in all other respects.